



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 7 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12058

EXPIRATION DATE: April 30, 1998

1. GRANTEE: ZENON Environmental Systems Inc.
Burlington, Ontario
Canada L7N 3P3
2. PURPOSE AND LIMITATION: This emergency exemption authorizes a one-time shipment of calcium hypochlorite and corrosive solid, n.o.s (contains sodium hydroxide) in non-specification packagings which are overpacked in a metal housing. This exemption provides no relief from any regulation other than specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 172 Subpart D, 172 Subpart E, 173.152, 173.154, 173.212, and 173.213
5. BASIS: This emergency exemption is based on the application of ZENON Environmental Systems Inc., dated April 8, 1998, submitted in accordance with 49 CFR 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Calcium hypochlorite, dry	5.1	UN1748	II
Corrosive solid, n.o.s. (contains sodium hydroxide)	8	UN1759	III

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. Calcium hypochlorite must be placed in screw-capped plastic jars. The net content in each jar may not exceed one (1) pound. No more than nine (9) jars will be packed in a rubber-lined, gasketed steel box with a hinged lid on the top.

b. Corrosive solid, n.o.s. (contains sodium hydroxide) must be placed in screw-capped plastic jars. The net content in jar may not exceed five (5) pounds. No more than ten (10) jars will be packed in a rubber-lined, gasketed steel box with a hinged lid on the top.

c. The steel boxes are overpacked in a metal housing which contains a reverse osmosis water purification unit (ROWPU).

d. There will be a total of seven (7) metal housings, each containing a ROWPU.

8. SPECIAL PROVISIONS:

a. The marking requirements of 49 CFR Subpart D and the labeling requirements of 49 CFR Subpart E are waived.

b. The routes of shipment are departure from Edmonton, Canada, via Seattle, Washington, Honolulu, Hawaii to Majuro, Marshall Islands.

c. This exemption serves as a Competent Authority Approval (CA-9804007) issued by the Associate Administrator for Hazardous Materials Safety of the United States Department of Transportation, in accordance with Part 1, Paragraph 1.1.1 of the International Civil Aviation Organization Technical Instructions (ICAO TI) for the Safe Transportation of Dangerous Goods by Air.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft.

10. MODAL REQUIREMENTS: Packages must be transported by a contract carrier.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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